

24STCV05303 24STCV05303

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-13

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Case Number: 24STCV05303 Hearing Date: July 13, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV05303

JACQUELYNN

RUTTI, AN INDIVIDUAL vs HALLIER INVESTMENTS LLC, A NEVADA LIMITED LIABILITY
COMPANY

July

13, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF JACQUELYNN

RUTTI'S MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES - GENERAL (SET ONE)
TO DEFENDANT HALLIER INVESTMENTS LLC, AND REQUEST FOR MONETARY SANCTIONS

AGAINST DEFENDANT HALLIER INVESTMENTS LLC AND DEFENDANT'S COUNSEL, NORTON & MELNIK, APC IN THE AMOUNT OF \$2,961.65.

PLAINTIFF JACQUELYNN RUTTI'S MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES - EMPLOYMENT (SET ONE) TO DEFENDANT HALLIER INVESTMENTS LLC AND REQUEST FOR MONETARY SANCTIONS AGAINST DEFENDANT HALLIER INVESTMENTS LLC AND DEFENDANT'S COUNSEL, NORTON & MELNIK, APC, IN THE AMOUNT OF \$2,961.65. PLAINTIFF JACQUELYNN RUTTI'S MOTION TO COMPEL

RESPONSES TO SPECIAL INTERROGATORIES (SET ONE) TO DEFENDANT HALLIER INVESTMENTS LLC; AND REQUEST FOR MONETARY SANCTIONS AGAINST DEFENDANT HALLIER INVESTMENTS LLC AND DEFENDANT'S COUNSEL, NORTON & MELNIK, APC IN THE AMOUNT OF \$4,411.65. PLAINTIFF JACQUELYNN RUTTI'S

MOTION TO COMPEL ANSWERS TO REQUESTS FOR PRODUCTION, SET ONE, TO DEFENDANT HALLIER INVESTMENTS LLC AND REQUEST FOR MONETARY SANCTIONS AGAINST DEFENDANT HALLIER INVESTMENTS LLC AND DEFENDANT'S COUNSEL, NORTON & MELNIK, APC, IN THE AMOUNT OF \$4,411.65.

RULING:

The Court orders the four motions off calendar, considering supplements served, and substantial justification for clerical errors.

Plaintiff to give notice.

I.

BACKGROUND

On March 4, 2024, JACQUELYNN RUTTI (Plaintiff) filed a Complaint against HALLIER INVESTMENTS LLC (Defendant), listing Causes of Action for wage-and-hour violations and related claims.

Plaintiff alleges various wage-and-hour violations, including that, while employed with Defendant, Plaintiff was required to work off-the-clock and during rest and meal breaks.

On June 12, 2026, Plaintiff filed the Motions to Compel initial responses to form, special and employment interrogatories, and requests for production of documents, on grounds that Defendant failed to respond, and without justification. Plaintiff also requests monetary sanctions

as to each Motion.

Defendant opposes, based upon counterarguments that responses have been served, counsel inadvertently missed the calendared deadline due to clerical error, and meeting and conferring could have avoided the motions and resolved any minor issues in the responses.

II.

LEGAL STANDARD

A motion to compel initial discovery responses need only show that discovery was properly served on the opposing party, the time to respond expired, and no response was served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906; Code Civ. Proc., §§ 2030.290 [compelling initial interrogatory responses], 2031.300 [compelling initial document requests].) A motion to compel initial discovery responses need not show good cause, meeting and conferring, or timely filing, and need not be accompanied by a separate statement. (Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants (2007) 148 Cal.App.4th 390, 404 (Sinaiko).)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.) Courts may determine substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.) Where satisfactory responses have been served after the filing of motions to compel, courts nonetheless may award sanctions. (Sinaiko, supra, at p. 409; County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256 [citing Sinaiko regarding court considering supplemental responses served after motion].)

III.

ANALYSIS

Plaintiff makes the
Motions based upon Defendant's failures to serve timely discovery responses and
includes the sanctions requests.

Defendant responds that:

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Full responses were served on
June 25, 2026.

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The calendared deadline was missed due to
a clerical mistake causing counsel not to realize the response deadline.

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Counsel met and conferred with opposing
counsel to try, in good faith, to rectify any deficiencies with the responses.

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Sanctions are inappropriate, because
secretarial, clerical, or calendaring mistakes are considered excusable.

Where respondents served
untimely discovery responses after parties have filed motions to compel initial
responses, courts have broad discretion as to ruling, including: 1) denying the
motion as moot, in whole or part, where valid responses without objections have
resolved the motion; 2) awarding requested sanctions; 3) allowing moving party
to take the motion off calendar; 4) considering the motion as voluntarily
narrowed in scope; 5) compelling responses without objection, where no legally
valid responses have been provided, as to some, or all, interrogatories; 6)
treating the motion as one to compel further responses, and ruling accordingly,
with, or without, a separate statement; 7) ordering the parties to meet and
confer; 8) ordering moving party to file a separate statement; or, 9) ordering
the motion off calendar while requiring the propounding party to file a motion
to compel further responses. (Sinaiko,
supra, at p. 409; County of San Benito v. Superior Court (2023) 96
Cal.App.5th 243, 256 [citing Sinaiko regarding court considering
supplemental responses served after motion].) Under some circumstances, it may

be an abuse of discretion for a court to treat a motion as being one to compel further responses without requiring a separate motion. (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 778.)

Analogously, to constitute grounds for relief under Code of Civil Procedure section 473, generally attorneys' errors must be accompanied by a factor outside attorneys' control in an unmanageable situation, such as mistakes of clerical staff. (Huh v. Wang (2007) 158 Cal.App.4th 1406, 1424.) Excusable neglect, including for purposes of Code of Civil Procedure section 473, includes the circumstances where an attorney relies upon employees who err in performing tasks. (Renteria v. Juvenile Justice, Dept. of Corrections and Rehabilitation (2006) 135 Cal.App.4th 903, 911-912 [attorney's reliance on secretary's erroneous removal of the claim filing date from the calendar was excusable].) Generally, regarding miscalendaring, excusable neglect and a basis for relief have been found where an attorney relies on an employee or calendaring system to calendar deadlines, and the employee or system fails. (Renteria v. Juvenile Justice, Dept. of Corrections & Rehabilitation (2006) 135 Cal.App.4th 903, 911.) Attorneys' or staff's calendaring errors can support relief, if excusable under appropriate circumstances. (Comunidad en Accion v. Los Angeles City Council (2013) 219 Cal.App.4th 1116, 1133-1135 ["trial court abused its discretion in denying ... relief from default. The one-week delay in requesting a hearing was an isolated mistake in an otherwise vigorous and thorough presentation of ... claims.... [T]he lead attorney made a single calendaring error, not a series of errors resulting from disorganization."].)

Here, Defendant reports that the requested responses now have been served, and expresses a willingness to meet and confer about any deficiencies. Additionally, defense counsel supports the finding of substantial justification in avoidance of sanctions, based upon clerical and attorney errors.

IV.

CONCLUSION

Accordingly, the Court orders the motions off calendar, without prejudice for Plaintiff to file any proper motions based upon the recent discovery responses.